

DISTRICT COURT, METRO COUNTY, STATE OF ST

JOHN DOE, Plaintiff,

v.

APEX DELIVERY SERVICES, INC., and ROBERT W. SMITH, Defendants.

Case No. 2026-CV-04471

Dept. 12

**DEFENDANTS' ANSWER AND AFFIRMATIVE DEFENSES TO FIRST
AMENDED COMPLAINT**

Filed: June 12, 2026 · Jane Vance, Esq. — Vance & Holt LLP, Counsel for Defendants

GENERAL DENIAL

Defendants deny each and every allegation of the First Amended Complaint not expressly admitted below. Defendants admit that a collision occurred on February 14, 2026 and that Robert W. Smith was employed by Apex Delivery Services, Inc.

AFFIRMATIVE DEFENSES

1. **Comparative Negligence.** Plaintiff failed to keep a proper lookout while executing a left turn.
2. **Pre-Existing Condition / Apportionment.** Plaintiff's lumbar complaints pre-date the collision (2018 workplace L4-L5 strain) and must be apportioned.
3. **Failure to Mitigate Damages.** Plaintiff abandoned treatment from April 1 through April 15, 2026.
4. **Collateral Source / Set-Off.** Defendants are entitled to a set-off for PIP benefits and amounts paid by health insurers.
5. **Reasonableness of Medical Charges.** Plaintiff may recover only amounts actually paid, not amounts billed.

Case Manager check: compare every defense raised later (at mediation or arbitration) against this list. A defense that is not pleaded here — for example a seatbelt / failure-to-restrain defense — has not been preserved.

Jane Vance, Esq., Vance & Holt LLP

Date: 06/12/2026

